

Smt. Mithlesh Rathor v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 February 2020 · W.P.(C) No. 6111 of 2020 (All.) · WRIT - C No. - 6111 of 2020 · **Writ disposed; fresh 6.14 application to be considered in four weeks.**

HEADNOTE

On the petitioner's request that her grievance be considered under clause 6.14 of the U.P. Electricity Supply Code, 2005, and with no objection from the power corporation, the Division Bench disposed of the writ by directing a fresh 6.14 application within two weeks, to be considered and disposed of by the competent authority in accordance with law by a reasoned speaking order within four further weeks. The Court did not decide entitlement to installments on the merits.

FACTUAL SUMMARY

Smt. Mithlesh Rathor petitioned the Allahabad High Court against the State of Uttar Pradesh and three others, including the power corporation. At the hearing her counsel asked only that the respondents be directed to consider her grievance in the light of clause 6.14 of the U.P. Electricity Supply Code, 2005. Counsel for the corporation stated there was no objection to a direction requiring the competent authority to proceed and pass appropriate orders in accordance with law. The order does not set out the underlying billing or default facts.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility — consideration of fresh application

HOLDING

Where the petitioner seeks consideration of her grievance under clause 6.14 and the licensee does not object, the writ is disposed of by directing a fresh application under clause 6.14 within two weeks, which the competent authority shall consider and dispose of in accordance with law by a reasoned speaking order within four further weeks. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14

The Court relegated the petitioner to a fresh clause 6.14 application, to be considered in accordance with law, without construing the installment facility on the merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO INSTALLMENTS UNDER CLAUSE 6.14

The Court issued a consider-in-accordance-with-law direction without examining the merits of the installment claim. ¶ 1